

Aqd AI - Advanced Contract Test

Enterprise Procurement, Software and Data Processing Agreement

Synthetic QA document for contract extraction, risk analysis, obligations, multilingual grounding, retrieval, citation accuracy, NOT_FOUND, and cross-clause consistency.

Provider	Atlas Meridian Technologies Ltd. ("Provider")
Customer	Gulf Horizon Distribution W.L.L. ("Customer")
Agreement Date	9 June 2026
Effective Date	15 June 2026
Initial Term	18 months
Governing Law	Laws of the State of Kuwait

Clause 1 - Definitions

"Services" means the hosted procurement, supplier-management, reporting, and workflow software provided by Provider. "Customer Data" means information submitted by Customer or its authorized users to the Services. "Business Day" means a day other than Friday, Saturday, or a public holiday in Kuwait. "Security Incident" means confirmed unauthorized access to, disclosure of, alteration of, or destruction of Customer Data in Provider's systems.

Clause 2 - Scope

Provider shall provide the Services to Customer for Customer's internal procurement and distribution operations. Customer may authorize employees and approved contractors to access the Services, subject to this Agreement.

Clause 3 - Effective Date and Term

This Agreement becomes effective on 15 June 2026 and continues for an initial term of eighteen (18) months. The initial term ends on 14 December 2027.

Clause 4 - Renewal

After the initial term, this Agreement automatically renews for successive twelve (12) month periods unless either party gives written notice of non-renewal at least ninety (90) days before the end of the then-current term. The renewal right is mutual.

Clause 5 - Implementation and Fees

Customer shall pay a one-time implementation fee of KWD 6,400 and a recurring subscription fee of KWD 3,100 per month. Subscription fees are invoiced monthly in advance and are payable within thirty (30) days after receipt. The parties acknowledge that the Agreement does not state a single total contract value because recurring fees continue during renewal periods.

Clause 6 - Taxes

Fees exclude taxes imposed on Customer's purchase of the Services. Customer shall pay taxes for which Customer is legally responsible, except taxes imposed on Provider's net income.

Clause 7 - Service Availability

Provider shall target monthly availability of 99.6%, excluding scheduled maintenance notified at least forty-eight (48) hours in advance, emergency maintenance, Customer-caused outages, and force majeure. If monthly availability falls below 99.0%, Customer shall receive a service credit equal to 10% of the affected month's recurring subscription fee.

Clause 8 - Support Obligations

For Severity 1 incidents that prevent substantially all production use, Provider shall acknowledge the incident within one (1) hour and provide updates at least every four (4) hours until service is restored.

For Severity 2 incidents, Provider shall acknowledge within four (4) Business Hours. Customer shall provide Provider with reasonable information required to investigate an incident.

Clause 9 - Security Measures

Provider shall maintain commercially reasonable technical and organizational measures designed to protect Customer Data. Provider shall maintain access controls, encryption in transit, and encryption at rest for Customer Data stored in its production environment. Provider shall review administrative access to production systems at least quarterly.

Clause 10 - Security Incident Notification

After confirming a Security Incident materially affecting Customer Data, Provider shall notify Customer without undue delay and, where reasonably practicable, within forty-eight (48) hours. Provider shall provide material updates as its investigation develops.

Clause 11 - Data Processing

Provider may process Customer Data only to provide, secure, support, and improve the Services. Provider may use subprocessors listed in its current subprocessor register and remains responsible for their performance. The Agreement does not state the physical location of every data center used by Provider.

Clause 12 - Data Export and Deletion

Customer may request a complete export of Customer Data during the term and for thirty (30) days after termination. Provider shall make the requested data available in a commonly used machine-readable format. After the thirty (30) day export period, Provider shall delete Customer Data from active systems within forty-five (45) days, except where retention is required by law or for backup integrity.

Clause 13 - Confidentiality

Each party shall protect the other party's Confidential Information using at least reasonable care and shall use it only to perform or receive the Services. These obligations do not apply to information already lawfully known, independently developed without use of the other party's Confidential Information, or made public without breach. These obligations survive for four (4) years after termination, except trade secrets remain protected while they qualify as trade secrets.

Clause 14 - Intellectual Property

Provider retains all right, title, and interest in the Services, software, documentation, and platform improvements. Customer retains all rights in Customer Data. Subject to payment, Provider grants Customer a non-exclusive, non-transferable right to use the Services during the term for Customer's internal operations.

Clause 15 - Suspension

Provider may suspend access immediately when reasonably necessary to address an active security threat, unlawful use, or a material risk to the Services. For non-payment, Provider may suspend access only after giving Customer at least seven (7) Business Days' written notice and an opportunity to cure. The Agreement does not state a fixed maximum duration for a security suspension.

Clause 16 - Termination for Cause

Either party may terminate this Agreement for a material breach that remains uncured for thirty (30) days after written notice. Customer may terminate immediately if Provider becomes insolvent or ceases substantially all business operations. Provider may terminate immediately for Customer's deliberate use of the Services for unlawful activity that creates a material security risk.

Clause 17 - Termination for Convenience

Customer may terminate for convenience after the first twelve (12) months by providing sixty (60) days' written notice. Provider has no express equivalent termination-for-convenience right under this Agreement.

Clause 18 - Liability

Except for Excluded Claims, each party's aggregate liability arising from this Agreement is limited to the fees paid or payable by Customer during the nine (9) months preceding the event giving rise to the claim. Excluded Claims are liability arising from fraud, willful misconduct, breach of confidentiality, and infringement of third-party intellectual property rights. Neither party is liable for punitive damages. The Agreement does not state an unlimited liability cap for ordinary negligence.

Clause 19 - Indemnification

Provider shall defend Customer against a third-party claim alleging that the Services, as provided by Provider, infringe a third party's registered intellectual property rights. Customer shall defend and indemnify Provider against third-party claims arising from Customer Data or Customer's unlawful use of the Services. Neither party owes indemnification for the other party's ordinary negligence except to the extent required by applicable law.

Clause 20 - Audit

Customer may request reasonable evidence of Provider's compliance with the security obligations once in each twelve (12) month period. Customer may conduct one remote compliance review per year on fifteen (15) Business Days' written notice, subject to reasonable confidentiality and security controls. No onsite audit right is expressly granted.

Clause 21 - Change Control

Provider may make non-material changes to the Services on thirty (30) days' prior notice. Provider may not materially reduce core functionality during the then-current paid term without Customer's written consent. Any change to recurring pricing requires a written order form signed by authorized representatives of both parties.

Clause 22 - Force Majeure

Neither party is liable for delay caused by events beyond its reasonable control, including natural disasters, widespread telecommunications failures, government action, or war, provided the affected party uses reasonable efforts to mitigate the impact. Payment obligations for amounts already due are not excused.

Clause 23 - Governing Law and Disputes

This Agreement is governed by the laws of the State of Kuwait. The courts of Kuwait City have exclusive jurisdiction over disputes arising from or relating to this Agreement, except that either party may seek urgent interim relief from any court of competent jurisdiction.

Clause 24 - Notices

Legal notices must be sent by courier or email to the legal contact designated by each party in its signed order form. An email notice is deemed received on the next Business Day if no delivery-failure message is received. The Agreement itself does not state the current legal-contact email addresses.

Clause 25 - Order of Precedence

This Agreement and each signed order form govern the Services. If an order form conflicts with this Agreement, the order form controls only for the specific commercial term that it expressly identifies as overriding. No unsigned document may amend this Agreement.

Clause 26 - Language and Priority

This Agreement is executed in English. An Arabic translation may be prepared for convenience, but if the English and Arabic texts conflict, the English text controls.

Clause 27 - Arabic Operational Provision

يلتزم المورد بإخطار العميل بأي حادث أمني جوهري يؤثر في بيانات العميل دون تأخير غير مبرر، وعلى ألا يتجاوز الإخطار ثمان وأربع

This clause deliberately contains real facts and obligations in Arabic so retrieval and cross-language grounding can be tested.

Clause 28 - Entire Agreement and Signatures

This Agreement and signed order forms constitute the entire agreement concerning the Services and supersede prior discussions on the same subject. Amendments must be in writing and signed by authorized representatives of both parties. Electronic signatures and counterparts are permitted.

End of Agreement

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